

SiyaBusa ERP

IP TRADEMARK STRATEGY

Legal Documentation

Masaphokati Technologies (Pty) Ltd

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WE RULE. WE GOVERN. WE EMPOWER.

SiyaBusa ERP - Intellectual Property & Trademark Strategy

INTELLECTUAL PROPERTY STRATEGY

Comprehensive IP and trademark strategy document outlining unique features, registration process, and protection measures.

Document Reference: IP-STRATEGY-2026-001

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Confidential

1. EXECUTIVE SUMMARY

This document outlines the intellectual property (IP) strategy for SiyaBusa ERP, including:

- Trademarks to be registered
- Patent considerations
- Copyright protection
- Trade secrets
- Registration process and timeline

2. UNIQUE FEATURES & PROPRIETARY TECHNOLOGY

2.1 Branded Product Names (Trademark Candidates)

Name	Type	Description	Priority
SiyaBusa	Word Mark	Main brand name	HIGH
SiyaBusa ERP	Word Mark	Full product name	HIGH
SARS Sentinel	Word Mark	AI-powered tax compliance module	HIGH
Audit Shield	Word Mark	Preventive audit defense system	HIGH
Compliance Co-Pilot	Word Mark	AI compliance assistant	MEDIUM
Digital Mailroom	Word Mark	Document automation system	LOW

2.2 Taglines & Slogans (Trademark Candidates)

Slogan	Use	Priority
"We Rule. We Govern. We Empower."	Brand tagline	HIGH
"Enterprise Value. Smart Pricing."	Marketing	LOW

2.3 Proprietary Technology (Patent Candidates)

Technology	Description	Patentability
SARS Sentinel AI Engine	AI system that automatically categorizes SARS correspondence, calculates deadlines, generates response workflows, and predicts audit risk	CONSIDER
Multi-Tenant ERP Architecture	Proprietary database isolation with shared infrastructure	REVIEW
Auto-Escalation Algorithm	Intelligent escalation based on urgency, deadline proximity, and historical patterns	CONSIDER
SA Tax Compliance Engine	Automated PAYE, UIF, SDL calculations with real-time SARS table updates	REVIEW

2.4 Unique Feature Set (Trade Secrets / Copyright)

AI Assistants (9 Pre-configured):

1. Financial Assistant
2. HR Assistant
3. Inventory Assistant
4. Sales Assistant
5. Compliance Assistant
6. Analytics Assistant
7. Treasury Assistant
8. Operations Assistant
9. Executive Assistant

South African Compliance Built-In:

- Direct SARS eFiling integration
- 16 SARS correspondence types pre-configured
- SA tax deadline calendar
- BCEA leave calculations
- B-BBEE scorecard tracking
- Employment Equity (EEA2/EEA4) reporting

Industry Verticals (5 Specialized Modules):

- Healthcare (HPCSA compliant)
- Mining (DMRE compliant)
- Construction (CIDB compliant)
- Property Management
- Agriculture

3. SOUTH AFRICAN TRADEMARK REGISTRATION PROCESS

3.1 Registration Authority

Companies and Intellectual Property Commission (CIPC)

- Website: www.cipc.co.za
- Email: trademarks@cipc.co.za
- Physical: DTI Campus, 77 Meintjies Street, Sunnyside, Pretoria

3.2 Trademark Classes (Nice Classification)

For SiyaBusa ERP, we need to register in the following classes:

Class	Description	Applicable To
Class 9	Computer software, downloadable software, mobile apps	SiyaBusa ERP software
Class 35	Business management software, business consulting	ERP services
Class 42	Software as a Service (SaaS), cloud computing, IT consulting	Cloud ERP platform

Recommendation: Register in Classes 9, 35, and 42 for comprehensive protection.

3.3 Registration Process

TRADEMARK REGISTRATION TIMELINE
STEP 1: Search (1-2 weeks)
↳ Conduct trademark search on CIPC database
↳ Check for similar marks in Classes 9, 35, 42
STEP 2: Application (1 day)
↳ Complete Form TM1
↳ Pay application fee
↳ Submit to CIPC
STEP 3: Examination (3-6 months)
↳ CIPC examines application
↳ Respond to any objections
STEP 4: Publication (2 months)
↳ Mark published in Patent Journal
↳ 3-month opposition period
STEP 5: Registration (1-2 months)
↳ Certificate issued if no opposition
↳ Effective from application date
TOTAL TIMELINE: 9-18 months

3.4 Fees (2026 CIPC Rates)

Item	Cost (ZAR)
Application per class (TM1)	R590
3 classes for SiyaBusa	R1,770
Additional marks (per class)	R590
SARS Sentinel (3 classes)	R1,770
Opposition fee	R1,180
Renewal (every 10 years)	R1,180 per class

Estimated Initial Budget: R5,000 - R10,000 (excluding legal fees)

4. TRADEMARK APPLICATIONS

4.1 Priority 1: SiyaBusa (Word Mark)

Mark: SIYABUSA

Classes:

- Class 9: Computer software; downloadable computer software for enterprise resource planning; mobile applications for business management
- Class 35: Business management services; business consulting; provision of business management software
- Class 42: Software as a service (SaaS); cloud computing services; computer software design and development

Goods/Services Description:

"Computer software for enterprise resource planning, including modules for financial management, human resources, inventory management, sales, purchasing, manufacturing, and compliance; software as a service (SaaS) featuring software for business management; IT consulting services."

4.2 Priority 2: SARS Sentinel (Word Mark)

Mark: SARS SENTINEL

Classes:

- Class 9: Computer software for tax compliance management
- Class 42: Software as a service for tax compliance; AI-powered tax monitoring services

Goods/Services Description:

"Computer software for South African Revenue Service (SARS) compliance management; software for tracking tax correspondence, deadlines, and submissions; artificial intelligence software for tax compliance analysis and risk assessment."

Note: Ensure the use of "SARS" does not infringe on government marks. The term is used descriptively to indicate the software's function.

4.3 Priority 3: Tagline (Word Mark)

Mark: WE RULE. WE GOVERN. WE EMPOWER.

Classes:

- Class 35: Business management services

- Class 42: Software as a service

4.4 Priority 4: Audit Shield (Word Mark)

Mark: AUDIT SHIELD

Classes:

- Class 9: Computer software for audit management and preparation
- Class 35: Business audit preparation services; advisory services relating to audit readiness
- Class 42: Software as a service (SaaS) for audit management; cloud computing services for audit trail management

Goods/Services Description:

"Computer software for audit management, audit preparation, and audit readiness assessment; software for tracking audit trails, collecting evidence, managing audit checklists, and facilitating auditor collaboration; software as a service featuring audit preparation tools for VAT, PAYE, IFRS, COSO, King IV, and B-BBEE compliance audits."

Unique Features:

- Preventive defense system (proactive audit preparation)
- Pre-populated compliance checklists (6 templates)
- Permanent audit file management
- Secure auditor portal with controlled access
- AI-powered audit readiness scoring

5. COPYRIGHT PROTECTION

5.1 Automatic Copyright

Under the South African Copyright Act 98 of 1978, copyright is automatic and covers:

Work	Protection	Duration
Software source code	Literary work	50 years from creation
Database schemas	Literary work	50 years
User interface designs	Artistic work	50 years
Documentation	Literary work	50 years
Marketing materials	Literary/Artistic	50 years

5.2 Copyright Notice

Include on all materials:

© 2023-2026 Masaphokati Technologies (Pty) Ltd. All rights reserved.
SiyaBusa®, SARS Sentinel™, and associated logos are trademarks of Masaphokati Technologies (Pty) Ltd.

5.3 Source Code Protection

Recommended Actions:

1. Use version control with audit trails (Git)
2. Implement access controls

- 3. Include copyright headers in all source files
- 4. Register key algorithms with SAMRO (optional)

Standard Source Code Header:

```
/**
 * SiyaBusa ERP - [Module Name]
 *
 * Copyright © 2023-2026 Masaphokati Technologies (Pty) Ltd.
 * All rights reserved.
 *
 * This software is proprietary and confidential.
 * Unauthorized copying, modification, distribution, or use
 * is strictly prohibited without prior written permission.
 *
 * @author Masaphokati Technologies Development Team
 * @version 1.0
 */
```

6. TRADE SECRET PROTECTION

6.1 Key Trade Secrets

Secret	Category	Protection Method
Pricing algorithms	Business	NDA, access control
AI model training data	Technical	Encryption, access control
Customer lists	Business	NDA, access control
Source code	Technical	Access control, contracts
Business strategies	Business	NDA, need-to-know basis

6.2 Protection Measures

- 1. **Employment Contracts:** Include confidentiality and IP assignment clauses
- 2. **NDA:** For all external parties (investors, partners, customers)
- 3. **Access Controls:** Role-based access to sensitive information
- 4. **Documentation:** Mark confidential documents appropriately
- 5. **Exit Procedures:** Ensure departing employees return all confidential materials

7. DOMAIN NAME STRATEGY

7.1 Current & Recommended Domains

Domain	Status	Action
siyabusa.co.za	REGISTER	Primary South African domain
siyabusa.com	REGISTER	International presence
siyabusaerp.co.za	REGISTER	Product-specific
siyabusaerp.com	REGISTER	International product
sarssentinel.co.za	CONSIDER	Product protection
sgbsgroup.co.za	VERIFY	Corporate domain

7.2 Social Media Handles

Secure consistent handles across platforms:

- LinkedIn: /company/siyabusa-erp
- Twitter/X: @SiyaBusaERP
- Facebook: /SiyaBusaERP
- Instagram: @siyabusa_erp

8. IP ENFORCEMENT STRATEGY

8.1 Monitoring

1. **Trademark Watch Service:** Subscribe to monitoring for similar marks
2. **Domain Monitoring:** Watch for cybersquatting
3. **Market Monitoring:** Watch for infringing products

8.2 Enforcement Actions

Infringement	Initial Action	Escalation
Similar trademark	Cease & desist letter	Opposition/Litigation
Copyright violation	DMCA takedown	Legal action
Trade secret theft	Investigation	Criminal/Civil action
Domain squatting	UDRP complaint	Legal action

9. TIMELINE & BUDGET

9.1 Implementation Timeline

Phase	Activity	Timeline	Budget
Phase 1	Trademark searches	Week 1-2	R2,500
Phase 2	File SiyaBusa trademark	Week 3	R1,770
Phase 3	File SARS Sentinel trademark	Week 4	R1,180
Phase 4	File tagline trademark	Week 5	R1,180
Phase 5	Domain registrations	Week 2	R500
Phase 6	Patent review (if applicable)	Month 2-3	R15,000+
Total Initial			R22,000+

9.2 Annual IP Maintenance

Item	Annual Cost
Trademark watch service	R3,000
Domain renewals	R500
Legal retainer (advisory)	R12,000
Total Annual	R15,500

10. RECOMMENDED LEGAL COUNSEL

For trademark registration, consider engaging:

1. **Adams & Adams** - Major SA IP firm
2. **Spoor & Fisher** - International IP specialists
3. **ENSafrica** - Full-service with IP practice
4. **Von Seidels** - IP boutique firm

Budget for Legal Fees: R15,000 - R30,000 for full trademark registration assistance.

11. IMMEDIATE ACTIONS

Week 1-2:

- ☐ Conduct CIPC trademark search for "SIYABUSA"
- ☐ Conduct CIPC trademark search for "SARS SENTINEL"
- ☐ Register priority domain names
- ☐ Secure social media handles

Week 3-4:

- ☐ Prepare TM1 applications

- ☐ Engage trademark attorney (recommended)
- ☐ Submit SiyaBusa trademark application
- ☐ Submit SARS Sentinel trademark application

Month 2:

- ☐ Respond to any CIPC queries
- ☐ Review patent possibilities with IP attorney
- ☐ Update all materials with proper trademark notices

12. APPENDICES

Appendix A: CIPC Contact Information

Appendix B: Sample TM1 Form

Appendix C: Trademark Search Results (to be completed)

Appendix D: Domain Registration Confirmations

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